



POLICE DEPARTMENT

June 27, 2025

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In the Matter of the Charges and Specifications	:	Case No.
- against -	:	C-032520
Police Officer Gerald Suam	:	
Tax Registry No. 962820	:	
Transit Bureau	:	

-----X

At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Paul M. Gamble, Sr.
Assistant Deputy Commissioner Trials

APPEARANCES:

For the CCRB-APU: Theresa Freitas, Esq.
Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

For the Respondent: Stuart London, Esq.
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To:

HONORABLE JESSICA S. TISCH
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

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CHARGES AND SPECIFICATIONS

1. Police Officer Gerald Suam, on or about July 26, 2023, at approximately 0400 hours, while assigned to Transit District 1 and on duty, in the vicinity of the 42nd Street Port Authority Bus Terminal A-C-E train subway station, located at West 44th Street and 8th Avenue, New York County, improperly used force, in that he deployed his pepper spray against [Complainant] within inches of [Complainant]'s face, without police necessity.

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USE OF OLEORESIN
CAPSICUM PEPPER
SPRAY DEVICES

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on June 4, 2025. Respondent, through his counsel, entered a plea of Not Guilty to the subject charge. The CCRB did not call any witnesses. Respondent testified on his own behalf and called Sergeant Nelson Roldan. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all the evidence in this matter, I find Respondent Not Guilty.

ANALYSIS

The following facts are not in dispute. On July 26, 2023, at approximately 0400 hours, [REDACTED] ("Complainant") entered the New York City Transit System at the 42nd Street Port Authority Station without paying the transit fare. Respondent was on duty, assigned to the Transit Bureau Anti-Terrorism Unit, and encountered Complainant, engaging in a discussion with him, most of which was recorded by his Body-Worn Camera. In sum, Respondent directed Complainant to exit the station and pay the subway fare before proceeding to a train. Complainant attempted to persuade Respondent to allow him to proceed to a train without paying the fare. After several minutes of back-and-forth exchange, Respondent told Complainant that

he had to exit the station or risk being placed under arrest. Complainant refused to leave, causing Respondent to attempt to handcuff him with the assistance of Police Officer Qosja and Sergeant Nelson Roldan. Complainant resisted arrest and refused to allow himself to be handcuffed. During a struggle with Police Officer Qosja and Sergeant Roldan, Respondent deployed his pepper spray to persuade Complainant to cease his resistance.

CCRB does not challenge whether Respondent had a sufficient legal basis or lacked police necessity to deploy pepper spray; they do, however, allege that the manner in which Respondent used pepper spray violated the Patrol Guide, specifically P.G. 221-07.

Complainant

On July 26, 2023, at approximately 0400 hours, Complainant entered the subway station located at West 44th Street and 8th Avenue. He ventured downstairs toward the A-C-E train line. There, Complainant noticed two police officers standing behind the turnstiles. One officer, Respondent, was described as a Black man in his mid-to-late 30s, approximately 5'10", with a medium build and a Mohawk. He described another officer, Police Officer Nelson Roldan¹, as a Latino man with medium-length, black, curly hair and approximately the same age, height, and build as Respondent. Complainant stated that he recognized Respondent, as he had encountered him several times in the past at that exact location. Although Respondent was not wearing glasses on the date in question, Complainant recalled that Respondent occasionally wore them (CCRB Ex. 6A at 4, 7, 9-12).

Complainant waved his hand to acknowledge the officers before hopping the turnstile and walking toward the A-C-E line. Respondent then approached him and instructed him to go back

¹ Officer Roldan has since been promoted to the rank of Sergeant.

and pay or exit the station. Complainant stopped walking and asked Respondent for leniency as he was trying to go home, as he claimed he could not afford the fare. He and Respondent went back and forth, each remaining steadfast in their positions, until Respondent requested backup, then placed his hands on Complainant (CCRB Ex. 6A at 6-7, 18-21).

Initially, Respondent raised both of his hands but only pushed Complainant's torso with one hand. Complainant then slapped Respondent's hand away with his right hand in a "defensive" manner and told Respondent to refrain from making further physical contact (CCRB Ex. 6A at 23). Nevertheless, Respondent pushed Complainant again and ordered him to exit the train station. Complainant raised his hand and contacted Respondent's left hand. During this portion of the altercation, Complainant backed up toward the nearest wall as police officers surrounded him (CCRB Ex. 6A at 23-28).

Complainant noticed that two additional officers had arrived on scene to assist Respondent with Complainant's arrest. He recalled that one officer was a tall, racially ambiguous man with a light complexion and a husky build in the same age range as his fellow officers. Complainant could not recall details about the other officer's appearance, but did remember that he was Caucasian, with the same height and build as the first two officers (CCRB Ex. 6A at 13-16).

Respondent and at least one other officer then grabbed Complainant's chest before tackling him to the ground. Police officers then tried to handcuff him as he lay in the fetal position to "protect [him]self" (CCRB Ex. 6A at 29). Complainant could not recall whether all four officers tackled him, as the interaction transpired quickly. He claimed, "Everything was a 'blur'" as the officers "rushed" him, and his adrenaline and emotions were running high (CCRB Ex. 6A at 26-27).

After an officer placed one of Complainant's hands in handcuffs, Respondent deployed his pepper spray. Complainant recounted that Respondent initially sprayed "from a distance" before coming nearer to Complainant as he continued to spray (CCRB Ex. 6A at 34). Complainant overheard another officer claim he got hurt in the process. Complainant could not recall the exact distance at which Respondent deployed the pepper spray; he did, however, feel the pressure of the stream increase over time. In addition, Complainant could not discern whether officers had struck him at this time, as the effects of the pepper spray, coupled with the stress of the altercation, distracted him from his surroundings (CCRB Ex. 6A at 7-8, 27, 30, 34).

Throughout the encounter, Complainant yelled, and none of the officers informed him that he was under arrest or ordered him to put his hands behind his back (CCRB Ex. 6A at 29, 41).

When Complainant used his free hand to reach his eyes, the officers were finally able to secure the handcuffs on the second of Complainant's wrists. In the aftermath, Complainant recounted that "everybody was coughing" and "nobody could see [be]cause the mace had hit everybody" (CCRB Ex. 6A at 32). Complainant was also coughing, as he had difficulty breathing and felt as if he were suffocating. He explained further that he had pepper spray in his eyes and throat and that his vision was impaired (CCRB Ex. 6A at 32, 39-40, 42-43).

Complainant stated that the officers requested EMS to respond to the scene; he remained on the ground until they arrived approximately five to ten minutes later. He posited that he stayed there as the officers were preoccupied with dealing with the symptoms they were experiencing due to pepper spray exposure. EMS personnel placed Complainant on a gurney and then into an ambulance. The ambulance transported Complainant, along with an unidentified officer, to Bellevue Hospital, where medical personnel rinsed Complainant's eyes

with water. He stated that his vision eventually returned as the effects of the pepper spray began to abate (CCRB Ex. 6A at 5, 47-51).

Complainant stated that the officers who accompanied him to the hospital initially told him that he was not under arrest. After Complainant was discharged from the hospital, one of the police officers accompanying him received a call from his supervisor; that officer then told Complainant that he was under arrest for fare evasion. Police officers then escorted Complainant to Transit Bureau District 1's stationhouse, where they processed him and placed him in a holding cell. Five to six hours later, police officers then transported Complainant to the Manhattan Criminal Courthouse, where he was released several hours later after being informed that the District Attorney had declined to prosecute charges against him (CCRB Ex. 6A at 5, 59-60).

Complainant asserted that he still suffers from visual impairment and routinely wears sunglasses, as he has developed a sensitivity to light (CCRB Ex. 6A at 58).

Respondent

Respondent testified that he had been a member of this Department for nine years. On July 26, 2023, he was assigned to the Transit Bureau Anti-Terrorism Unit. Respondent worked a midnight tour that day with then-Police Officer Roldan in the subway station in Times Square. Their assignment that tour was fare evasion enforcement (T. 29-30).

Respondent testified further that at approximately 0400 hours, he encountered Complainant, who manipulated the turnstile to enter the subway system without paying his fare. He testified that he was familiar with Complainant, having seen him in the past when he asked Respondent for permission to enter the subway. On various occasions, Complainant told

Respondent that he either had no money or that he had forgotten his wallet at home. Respondent testified that he would sometimes permit Complainant to access the subway without paying, depending on the reason he gave. On July 26, however, Complainant waved at Respondent, then manipulated the turnstile to enter without Respondent's prior permission (T. 31).

Respondent testified that he approached Complainant and told him to "go back and pay." Still, Complainant refused (T. 32). He testified that, although he had the option of issuing a summons to Complainant, he decided to allow him to exit the subway system and pay his fare (*Id.*).

Respondent testified further that he spent about two minutes in conversation with Complainant before he decided to take enforcement action. Then-Police Officer Roldan had joined Respondent during the conversation²; he then called Police Officers Qosja and Nelson on his mobile phone when he surmised that Complainant was not willing to leave the station voluntarily (*Id.*).

Respondent testified that he first took out his baton but then decided to return it to his belt and use pepper spray instead (T. 33). He testified that he used his pepper spray while standing over Complainant and the other police officers who were grappling with Complainant on the ground (*Id.*). Respondent testified that he deployed one continuous spray from the canister in the direction of Complainant's eyes. After using the pepper spray, Complainant stopped fighting, enabling the police officers to handcuff him completely (T. 34).

Respondent testified further that after Complainant had been handcuffed, he was taken to Bellevue Hospital for treatment, in accordance with procedure for the use of pepper spray (T.

² Sergeant Roldan had been present during the initial discussion with Complainant but left for a short time to deal with another person who entered the station without paying their fare.

37). He estimated that he was approximately an arm's length from Complainant's eyes when he deployed the spray (*Id.*).

On cross-examination, Respondent conceded that he did not warn Complainant prior to using the pepper spray, nor did he warn his fellow police officers (T. 38). He acknowledged that at the time he deployed the pepper spray, three other police officers were on top of Complainant on the ground (T. 39). Respondent affirmed his testimony that he was approximately three feet from Complainant at the time he deployed his pepper spray and estimated the length of his arm to be approximately two and a half feet (T. 40, 42). He clarified that although he had his hand on Complainant at one time, he did not maintain that contact throughout the encounter and was not in contact with him at the time he deployed his pepper spray (T. 43). Respondent maintained that he was about three feet away from Complainant's face when he deployed the pepper spray, even after viewing CCRB Exhibits 1, 2 and 3 in court (T. 44).

On re-direct, Respondent testified that while he initially had his hand on Complainant, he removed it when this fellow police officers arrived to assist him, permitting him to retrieve his pepper spray canister while they attempted to restrain Complainant (T. 45). He testified that he was standing when he reached for his pepper spray canister; when he sprayed it at Complainant's face, the distance between the canister and his face was approximately three feet (*Id.*). Respondent testified that he was confident that his pepper spray was at least three feet from complainant's face because Police Officer Qosja's body was between Complainant and himself (T. 46).

On re-cross, Respondent testified that Police Officer Qosja's body was between he and Complainant, but Qosja's body did not block Respondent's view of Complainant (T. 47). He testified that he is approximately 5'7" tall (*Id.*).

In response to a question from the Tribunal, Respondent testified that although he was standing above Complainant when he deployed his pepper spray, he was leaning forward at an angle of approximately 30 degrees (T. 49). He affirmed that the distance between the canister and Complainant's face was approximately three feet (*Id.*).

Sergeant Nelson Roldan

Sergeant Nelson Roldan testified that he was appointed to the Department in 2005 (T. 17). On July 26, 2023, at 0400 hours, he was performing a midnight tour at the 42nd Street-Port Authority subway station while assigned to the Transit Bureau anti-terrorism unit (T. 18). At about that time, Sergeant Roldan testified that he encountered Respondent, who was attempting to escort an individual ("Complainant") out of the train station (T. 19). He testified further that he had been working with Respondent to persuade Complainant to leave the station, then broke away to prevent two other individuals from entering the station without paying their fares (T. 20). When he returned to Respondent and Complainant, he surmised that Respondent had already decided to eject Complainant from the station (*Id.*). Roldan recalled that Complainant was unwilling to leave, became combative, and tensed his body (T. 21). Roldan and Respondent then attempted to place Complainant in handcuffs (*Id.*).

Sergeant Roldan testified that before attempting to place Complainant under arrest, he and Respondent used verbal tactics to persuade him to leave the station voluntarily, but these proved ineffective (T. 21). He recalled that Police Officers Qosja and Russell were also working with him (*Id.*). After they attempted to escort Complainant from the station, he put his back to a wall, and the group of police officers formed a semicircle around him (*Id.*). When Roldan and the attempted to grab Complainant's arm, he tensed his body and "tucked" it, refusing to allow himself to be handcuffed (T. 22). Sergeant Roldan testified that he did not see when Respondent

deployed his pepper spray or how close he was to Complainant's face when he did; Roldan denied that the pepper spray got into his eyes but conceded that he did aspirate it (*Id.*).

On cross-examination, Sergeant Roldan testified that although he viewed CCRB Exhibit 1 in court, he was unable to see on the recording when Respondent deployed his pepper spray or how close he was standing to Complainant when he did so (T. 24). He testified that he was "fairly close" to Complainant, as he had his hands on him (*Id.*). Sergeant Roldan was unable to state how close Respondent was to Complainant, as he was focused on struggling with Complainant (T. 24-25).

Body-Worn Camera Evidence

Respondent

01:00–01:30

Respondent and Complainant are standing several feet from the turnstile, next to a support column, engaged in a verbal exchange. Respondent tells Complainant, "You're being recorded. Can you exit over there, please?" Both make inaudible statements before Respondent repeats, "Can we go, please? What am I going to do? Can we go, please?" He follows up with, "Listen, I'm not going to keep doing this." Complainant asks, "Doing what?" and Respondent replies, "What we're doing right now. You didn't pay." As Complainant begins to explain, Respondent interjects, "Sir, can you exit? I don't know who you are." PO Roldan is seen approaching the scene of the altercation. Complainant points at Respondent and says, "You know who I am, stop playing." Respondent replies, "Can you exit, please? You are being recorded. Can you exit?"

01:31–01:53

Complainant says, "Stop. Stop doing that, bro. Why are you doing that?" Respondent shifts to the opposite side of the support column. PO Roldan makes a few inaudible remarks and tells Complainant, "Now you have to leave the station." Respondent states, "I don't want to put you out. I'm just telling you to leave." Complainant, now facing Respondent, says, "Bro, please do not put your hands on me. That's my only thing. Please, do not put your hands on me; that's all I'm asking you." Respondent replies, "Okay, but I'm telling you right now, you are being recorded, and I'm telling you, please do not do what you are doing right now." Complainant does not comply and responds, "That's all I'm asking."

Respondent yells, "Sir!" and Complainant says, "I'm trying to talk to you man to man."

01:54–02:29

PO Roldan walks away to engage another citizen at the turnstile. Respondent tells Complainant, "Let's go." Complainant again warns, "Don't put your hands on me." Respondent responds, "I'm not—if you leave." Complainant asks, "Why do I have to? I'm asking you this one question: why?" Respondent pulls out his phone as Complainant says, "Y'all need to stop that, bro. This is something that you already know." He then asks twice to speak with a supervisor. Respondent states, "You're gonna talk to my supervisor when you exit the turnstile," while pointing in the direction he wants Complainant to leave. Complainant remains in place and repeatedly states, "I need to talk to your supervisor. I don't know why you're doing this. I really don't."

02:30–03:03

Respondent is heard on a call asking other officers, "Are you guys coming out?" (*The rest is inaudible.*) Meanwhile, Complainant, now with arms crossed, mumbles, "I need to speak with your supervisor, and I don't know why you're even doing this." After ending the call, Respondent tells Complainant, "Let's go!" Complainant responds, "I don't even know what you're doing, bro. This is not necessary." Respondent says, "It is really necessary." Complainant repeats, "I don't know why you're doing this." Respondent replies, "You're gonna find out. Let's go, Sir. You have to exit. I told you the last time, you cannot keep coming in and not paying!" Complainant replies, "Excuse me, brother, listen—it's not that I keep coming in and not paying." Respondent says, "You keep coming and doing the same thing! You raise your hand, and then you go through. It doesn't work like that!" Complainant repeats twice, "What are you talking about, bro?"

03:04–03:30

Respondent asks, "When's the last time you paid?" Complainant responds, "Bro, please, I pay. I pay." Respondent asks, "When?" and says, "Not today." Complainant shouts, "Sir, I'm asking you!" Respondent replies, "You asked me, and I said no! You asked me a question, and I said no!" Complainant continues asking, "Why you playing? You know who I am." Respondent states, "I don't know who you are. Who are you?" Complainant responds, "You know who I am." Respondent asks, "Do you know me?" Complainant replies, "I was there the day you got your glasses broke." Respondent says, "Everybody was there. What is that supposed to mean? I don't know everybody. I don't know you." He adds, "I told you the last time—you can't keep doing this."

03:31–04:15

Respondent continues, "You keep coming in, raise your hand, and go through. That's not going to happen today." Complainant responds, "That's not all the time, bro." Respondent insists, "Every time when I'm

here, and I told you—” Both begin talking over each other. Respondent says, “You were there the last time something happened, and I understand that. That does not mean I know you. And I’m telling you—you’re gonna exit because you didn’t pay.” Complainant does not move but pleads, “Bro, listen to me. Please listen to me. Please listen to me.” Respondent replies, “I’m listening. Complainant says, “All I want to do is just go home.” Officer Roldan reapproaches as Respondent says, “You have to pay. You’re gonna go home, but you have to pay.” Complainant again crosses his arms and asks for a supervisor. Respondent replies, “Sir, I said—you are going to speak to my supervisor when you exit the turnstile.” Complainant ignores the directive and repeatedly asks for a supervisor. Respondent repeats, “You will talk to him when you exit.” He adds, “Let’s go.” Complainant does not move.

04:15–04:29

Respondent says, “I’m going to put my hands on you now.” Complainant responds, “Don’t put your hands on me, bro.” Respondent shouts, “And I will, okay? Let’s go!” Complainant asks, “Why are you doing that, bro? Why are you doing that?” He again pleads, “Don’t do that, bro!” and repeats his request for Respondent’s supervisor. Respondent says, “Sir, can you turn around and leave over there?” Complainant replies, “Stop. Please don’t do this, bro. Come on, bro. Can I speak to your supervisor?” Respondent answers, “No! No! Let’s go!”

04:30–04:48

PO Qosja arrives and tells Complainant, “You do this every night.” Respondent repeats this and says, “He knows you! Everybody knows you here! You’re exiting, and I’m done talking!” Complainant begins backing up toward the wall, repeatedly saying, “Don’t do this, bro.” A fourth police officer, now standing to Complainant’s right, puts on gloves. Complainant stands facing forward, looking directly at Respondent and says again, “Don’t do this, bro,” while pointing a finger and telling him to “stop.” Respondent walks toward him and says, “I’m doing it now.” As the police officers attempt to apprehend him, Complainant shrugs away and jerks his body back and forth, his back still against the wall. He yells, “Get your hands off me! Stop! Stop!”

04:51–05:05

Complainant continues resisting, yelling, “Stop! Stop, bro! Yo, I’m good!” He braces himself against the wall with his back and both feet planted. As the police officers attempt to bring him down, he continues to struggle, still holding his phone. They try to turn him onto his stomach, but he resists by placing his hands under his torso. The police officers pull at his arms to get them behind his back.

05:05-5:31

Respondent stands up and is seen holding a baton in his right hand as the police officers continue to struggle with Complainant. Respondent removes the pepper spray from his utility belt and switches it to his right

hand. It is unclear if he sprays at this point. As the police officers continue to wrestle with Complainant, Respondent moves in closer to Complainant's face with the pepper spray. Complainant shields his eyes with his left forearm. The police officers are then able to place him under arrest.

Police Officer Qosja

00:59–1:12

PO Qosja approaches as Respondent and Complainant continue a verbal exchange. PO Roldan stands approximately three feet away from the suspect. Respondent tells Complainant, "Let's go," and PO Qosja adds, "You do this every night." A fourth police officer appears to the left of Respondent and moves in closer to Complainant. Respondent then states, "He knows you. Everybody knows you. You're exiting, and I'm done talking."

1:13–1:19

Respondent says, "Let's go," and reaches for Complainant's arm. Complainant pulls his arm away and, while looking Respondent directly in the eyes, says, "Come on, don't do this, bro." Respondent again reaches toward him and says, "Let's go." Complainant moves away from Respondent's grasp and begins walking backward toward a wall. All four Officers move toward Complainant as he steps backward. While continuing to engage Respondent and maintaining eye contact, Complainant says, "Don't do this, bro. Stop."

1:20–1:35

Respondent grabs Complainant by the shirt, but Complainant resists by jerking his body, causing Respondent to lose his grip. Complainant yells, "Get off me, bro. Get your hands off me. Stop." The other police officers move in to assist. Complainant is holding a cell phone in his right hand and sunglasses in his left. As the police officers grab for his arms, he shakes and jerks his body in resistance. He repeatedly says, "Stop, bro. Stop. Get your hands off me."

1:36–1:57

The police officers bring Complainant to the ground and attempt to position him on his stomach. Complainant resists by digging his feet into the ground and using his elbows and knees to prevent being turned over. He continues to jerk his body back and forth to evade apprehension. *The video becomes obscured during this time.*

1:58–2:23

Respondent is seen holding a pepper spray canister in his right hand near Complainant's face. *(It is unclear if the pepper spray is being sprayed at this moment).* Complainant uses his left forearm to shield his eyes and rolls onto his stomach. At this point, he ceases resistance. Some of the police officers react to exposure to the pepper spray; the remaining police officers are then able to place Complainant under arrest.

Police Officer Roldan

- 1:00–1:23** PO Roldan approaches Complainant and Respondent as Respondent tells Complainant, “You are being recorded. Can you exit?” and points in the direction Complainant should leave. PO Roldan says, “Listen. Listen. Listen. You’re being recorded on a body-worn camera. He’s asking you nicely that you leave because you’re being ejected, okay? Now you have to leave the station.” Complainant stares at PO Roldan with his arms at his sides, holding a phone in his right hand and sunglasses in his left. He does not respond to PO Roldan and then re-engages with Respondent. As PO Roldan moves in closer, Complainant, while staring directly at Respondent, says, “Please do not put your hands on me. That’s all I’m asking.”
- 1:23–3:24** PO Roldan walks away from the exchange to engage another person near the turnstile.
- 3:25–3:47** When PO Roldan reapproaches Complainant, he is standing with his arms crossed over his chest. Respondent points in the direction of the exit and states, “I said you can talk to my supervisor when you exit the turnstile.” Complainant and Respondent speak over each other as an additional police officer is seen approaching from behind.
- 3:47–4:07** Complainant does not leave the station, and Respondent tells him, “I’m going to put my hands on you.” Complainant responds, “Don’t put your hands on me, bro.” Respondent replies, “And I will.” Complainant asks Respondent twice, “Why are you doing that? Don’t do that,” while continuing to ask to speak with his supervisor. PO Qosja tells Complainant, “You do this every night.” Respondent repeats this statement and says, “He knows you. Everybody knows you here. You’re exiting, and I’m done talking.” Complainant tells Respondent to stop and repeatedly says, “Don’t do this, bro.”
- 4:08–4:27** Respondent reaches for Complainant’s left hand to lead him toward the exit, but Complainant moves his arm away before Respondent can make contact. Respondent repeats, “Let’s go.” Complainant steps backward toward the wall as Police Officers Roldan, Qosja, and a fourth police officer move in closer to apprehend him. Complainant backs into the wall, repeatedly yelling, “Stop!” and “Don’t do this!” to Respondent. The police officers attempt to arrest Complainant by grabbing his arms, but he swats them away while keeping his back to the wall. Respondent then pulls his baton from his belt. Complainant is heard repeatedly yelling at the police officers, “Get your hands off me, bro!” and “Stop!”
- 4:56–5:27** Respondent can be seen with a can of pepper spray in his hand near Complainant’s face. Complainant reaches his left forearm over his eyes.

4:56-5:27 Respondent can be seen with a can of pepper spray in his hand near Complainant's face. Complainant reaches his left forearm over his eyes. Additional police officers arrive on the scene, and Complainant is placed under arrest.

Credibility

It is long-settled that hearsay evidence is admissible in this Tribunal and may form the factual basis for a finding of misconduct if it is deemed reliable. The finder of fact must scrutinize the out-of-court statement for several credibility factors, including internal consistency, logic, and corroboration by independent evidence. The Tribunal must also consider whether fundamental fairness allows the statement to be credited despite the lack of an opportunity for Respondent to confront the declarant under oath during the trial. Based upon the totality of the circumstances, I find Complainant's hearsay statement credible concerning material factual assertions he made regarding how the encounter occurred, which were corroborated by either Respondent's body-worn camera video or his admissions; I find the balance of his statement self-serving and unreliable.³

In contrast, Respondent was forthcoming, concise and logical. His testimony was consistent with the independent evidence in the case, as well as the testimony of Sergeant Roldan, which I credit below. To the extent that his testimony revealed gaps in recollection of the events, it is more likely than not attributable that the chaotic nature of the interaction and the

³ In an undated Personal Injury Claim Form, filed with the New York City Comptroller, Complainant asserted, through counsel, that he paid his fare on July 26, 2023 (Resp. Ex. B, p. 2). This factual assertion is in direct contradiction of the admission he made in his August 4, 2023, hearsay statement that he "hopped the turnstile" (CCRB Ex. 6A, p. 4-5). The Tribunal will consider this as an additional factor weighing against the reliability of the uncorroborated portions of Complainant's statement.

passage of time since the event, rather than a deliberate attempt to withhold material information from the Tribunal.

Similarly, I credit the testimony of Sergeant Roldan as forthcoming and logical. His testimony, which also revealed certain lapses in memory, was nevertheless corroborated by his own body-worn camera video, as well as those of Police Officer Qosja and Respondent.

Improper Use of Pepper Spray

I find that CCRB has failed to meet its burden by a preponderance of the credible, relevant evidence that Respondent improperly used force by deploying pepper spray within inches of Complainant's face without police necessity.

The threshold factual issue, in this case, is how close Respondent's pepper spray canister came to Complainant's face: on that issue, Complainant asserted that it was initially from a distance, then closer to his face. Respondent testified that he discharged his pepper spray from approximately three feet away but conceded that he had leaned over while doing so, as Complainant was on the ground at the time, struggling with Respondent's fellow police officers. Respondent denied ever moving closer to Complainant's face than the distance from which he first deployed the pepper spray.

Patrol Guide procedure 221-07 states, in relevant part:

When necessary to use O.C. pepper spray device:

1. Hold O.C. spray in an upright position, aim and discharge O.C. pepper spray into a subject's eyes for maximum effectiveness, using two, one-second bursts, at a minimum distance of three feet ...

(P.G. 221-07).

Based upon the totality of the credible evidence, I find that there came a point in time during Respondent's encounter with Complainant, as reflected on the body-worn camera recordings of Police Officer Qosja and then-Police Officer Roldan, that he held his pepper spray canister near Complainant's face. This finding is consistent with Complainant's assertion that he felt the pepper spray hit his face from a distance and then move closer to him. Complainant's gesture of moving his arm in front of his face at the same time the canister is near it permits me to draw the inference that the time he made that gesture, pepper spray was being discharged from the canister.

I make this finding mindful that Respondent testified that he deployed his pepper spray from an "arm's length" distance, which he estimated to be about three feet. When asked by the Tribunal if he ever got closer to Complainant's face than three feet, he responded, "No, I don't think so. From my recollection, no. I don't think so."

CCRB invites this Tribunal to find that the use of pepper spray, at any point, from a distance closer than three feet, constitutes misconduct and that they have met their burden of proof. This argument overlooks the requirement that CCRB establish that such deployment was without police necessity. Based upon the totality of the evidence, they have failed to meet their burden on this element. Given that CCRB does not take the position that the use of pepper spray was unwarranted *ab initio*, they must establish how Respondent's action of moving his canister closer to Complainant's face constitutes misconduct under the circumstances he faced.

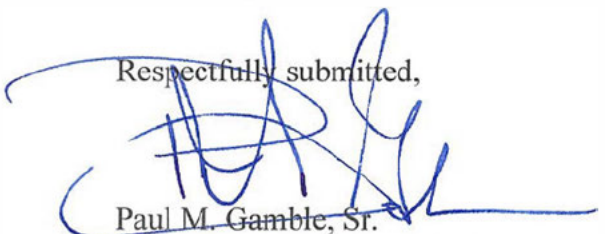
Logically, Respondent may have moved the canister closer to Complainant's face during the struggle to handcuff him because other police officers were grappling with Complainant. The credible testimony of Sergeant Roldan and Respondent established that Complainant was still actively resisting arrest, even while on the ground. Their testimony also established that the

assisting police officers, including Sergeant Roldan, were affected by Respondent's usage of his pepper spray. Under these circumstances, it would have been logical and reasonable for Respondent to have moved closer to Complainant to attempt to direct the pepper spray in a more focused manner and avoid spraying it on the officers' faces.

In other words, CCRB's burden is to prove that if Respondent had done as described above, even that rationale would not constitute police necessity. Based upon the credible, relevant evidence in this record, they have not done so. To find otherwise would be to impose a hyper-technical reading of the Patrol Guide to misconduct cases. This Tribunal will not do so. The Patrol Guide procedure outlines the optimal methodology for using this form of force when circumstances warrant it. This procedure does not contain an explicit prohibition against using pepper spray within a three-foot radius. Since the drafters of the Patrol Guide have included explicit prohibitions on conduct in other procedures, this Tribunal may infer that their decision not to include one in Patrol Guide procedure 221-07 was intentional.

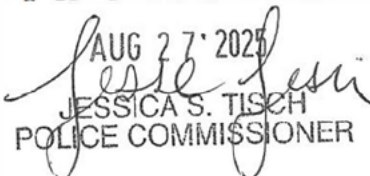
Based upon the foregoing, I find Respondent Not Guilty.

Respectfully submitted,


Paul M. Gamble, Sr.

Assistant Deputy Commissioner Trials

APPROVED


AUG 27 2025
JESSICA S. TISCH
POLICE COMMISSIONER